

Gunjan Kumari vs Vinay Kumar Pandey on 25 January, 2010

Author: Ravi Ranjan

Bench: Ravi Ranjan

IN THE HIGH COURT OF JUDICATURE AT PATNA

C.R. No.1229 of 2009

GUNJAN KUMARI, D/O LATE AWADHESH KUMAR THAKUR
WIFE OF SRI VINAY KUMAR PANDEY @ PAPPU, R/O
MOHALLA BALBHADRAPUR NEAR N.P.MISHRA CHOWK,
P.S. LAHERIASARAI, DISTRICT-DARBHANGA.
- OPP.PARTY-PETITIONER

Versus

VINAY KUMAR PANDEY SON OF SRI RAM KRIPAL
PANDEY, R/O MOHALLA BALBHADRAPUR, P.O. AND
P.S. LAHERIASARAI, DISTRICT- DARBHANGA.
-PETITIONER-OPPOSITE PARTY

For the Petitioner : Mr. Kaushalesh Choudhary

For the Opp.Party : M/s Pramod Kr. Thakur &
Manoj Kr.Ambastha

7 25.01.2010

Heard learned counsel for the petitioner and learned counsel for the opposite party.

This Civil Revision is directed against the order dated 14th November, 2008 passed in Matrimonial Case no. 114 of 2008 whereby the concerned Court has granted interim maintenance till the disposal of the case.

The question crops up as to whether the Civil Revision would be maintainable or not in view of the specific bar as contained in Section 19(5) of the Family Court Act, 1984 (hereinafter referred to as 'the Act').

It is submitted on behalf of the petitioner that this order may be considered as an order passed under Section 125 of the Code of Criminal Procedure and he may be allowed to convert this Civil Revision into Criminal Revision.

Learned counsel for the petitioner alternatively submitted that a Full Bench decision of this Court rendered in the case of Sunita Kumari V. Prem Kumar (FB), (2009) 3 PLJR 990, has held that the provisions under Section 19 of the Act have wider ambit so as to cover all kinds of judgment and order made and not only the decrees, thus, an appeal may be maintainable, if revision is not. However, learned counsel sought permission to convert this revision into Miscellaneous Appeal.

I do not find any force in the submissions made on behalf of the petitioner. For proper appreciation of the case, Section 19 of the Act is being quoted as under:

"19.Appeal.- (1) Save as provided in Sub- section (2) and notwithstanding anything contained in the Code of Civil Procedure, 1908 (5 of 1908) or in the Code of Criminal Procedure, 1973 (2 of 1974) or in any other law, an appeal shall lie from every judgment or order, not being an interlocutory order, of a Family Court to the High Court both on facts and on law.

(2) No appeal shall lie from a decree or order passed by the Family Court with the consent of the parties or from an order passed under Chapter IX of the Code of Criminal Procedure, 1973 (2 of 1974);

Provided that nothing in this Sub-section shall apply to any appeal pending before a High Court or any Order passed under Chapter IX of Code of Criminal Procedure, 1973, (2 of 1974) before the commencement of the Family Courts (Amendment) Act, 1991.

(3) Every appeal under this Sub-section shall be preferred within a period of thirty days from the date of the judgment or order of the Family Court.

(4) The High Court may, of its own motion or otherwise, call for and examine the record of any proceeding in which the Family Court situate within its jurisdiction passed an order under Chapter IX of the Code of Criminal Procedure, 1973 (2 of 1974) for the purpose of satisfying itself as to the correctness, legality or propriety of the order, not being an interlocutory order, and, as to the regularity of such proceeding.

(5) Except as aforesaid, on appeal or revision shall lie to any Court from any judgment, order or decree of a Family Court.

(6) An Appeal preferred under Sub-section (1) shall be heard by a Bench consisting of two or more Judges."

It would be manifest from Sub-section (1) of Section 19 that the Appeals are available against judgment and order, not being Interlocutory Order of a Family Court, to the High Court, both on facts and law. Thereafter, there is provision of entertaining revision against an order which has been passed under Chapter-IX of the Code of Criminal Procedure, 1973.

There is specific bar under Section 19(5) of the Act to the effect that no appeal or revision shall lie to any Court from any judgment or order or decree of a Family Court except that has been provided in Section 19 of the Act itself. From bare perusal of the impugned order it would be manifest that maintenance of Rs.2,000/- per month till disposal of the Matrimonial Case no.114 of 2008 has been granted to the petitioner (wife) and her daughter, thus undoubtedly the same is interlocutory in nature. It has been submitted that since, in the petition filed in the Matrimonial case for ad-interim grant of maintenance, no provision of law has been described, the same ought to have been considered as a petition under Section 125 of the Code of Criminal Procedure. This argument of the petitioner is only noted to be rejected inasmuch the Suit has admittedly been filed under Section 13 of the Hindu Marriage Act, 1955 and there is specific provision under Section 24 of the Hindu Marriage Act for grant of ad-interim maintenance in a suit filed for divorce under Hindu Marriage Act. In that view of the matter, it can not be deemed that the petition had been filed under Section 125 of the Code of Criminal Procedure. That apart, section 28(2) of the Hindu Marriage Act, provides that even the orders passed under Sections 25 and 26 are appealable if they are not interlocutory in nature. In that view of the matter, if the order is a final order or judgment or decree that can be appealable under Section 19(1), however, if the same is any order other than the order which could be appealed under the aforesaid provision, Civil Revision would definitely be not maintainable in view of the provisions under Section 19(5). A Division Bench of this Court in the case of Jagdish Prasad Chouhan V. Bhuneshwar Chouhan & Anr., 2009 (3) PLJR 931, has held that in view of specific bar contained in section 19(5) of the Act no Civil Revision would be maintainable against any interlocutory order . The question before the Full Bench in Sunita Kumar (Supra) was as to whether the appeals filed against the order, judgment or decree, would be treated as a Miscellaneous Appeal or the First Appeal. The Full Bench has come to the conclusion that in such cases appeals should be treated as Miscellaneous Appeal. The Full Bench, of course, has observed in clear terms that the provision under Section 19 of the Act has a wider ambit so as to include all kind of judgments and orders made appealable by the express provision under that Section. However, I have already held that the impugned order is interlocutory in nature and such interlocutory orders are expressly excluded from category of orders which are challengeable by preferring appeal under the provisions contained in Section 19. Thus, the impugned order not being an appealable order under Section 19 (1) of the Act, the prayer for permitting to convert this Civil Revision into Miscellaneous Appeal cannot be allowed.

In that view of the matter, I hold that the order impugned being interlocutory in nature, Civil Revision would not be maintainable and the same is, accordingly, dismissed.

However, it would be open for the petitioner to avail another remedy which may be available to him under law including the Constitution of India.

(Dr. Ravi Ranjan, J.) AAhmad